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Supreme Court ruling to affect few bicycle trails in Pennsylvania

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A Supreme Court ruling that could jeopardize thousands of miles of bicycle trails should leave Pennsylvania largely unscathed, cycling advocates say.

Justices ruled 8-1 Monday in a Wyoming property case that could force the government to pay tens of millions of dollars to landowners or to abandon an uncertain number of public trails. The court found federal government easements that are key in redeveloping many railroads as recreational paths can violate the rights of property owners along the way.

The national Rails-to-Trails Conservancy is analyzing the decision but expects the impact to be more significant for western states than for Pennsylvania, said Tom Sexton, a northeast regional director for the nonprofit conservancy.

"It's impacting only those (rights of way) that are federally granted, and that's mostly — not entirely — an issue in the West," Sexton said.

He was not immediately aware of any trails in Western Pennsylvania that might be affected by the court decision. The conservancy is reviewing what portion of railroads-turned-trails in the state rely on government easements.

Government officials reported trail-related compensation claims that could top \$100 million for about 10,000 properties in 30 states. The argument stems from the 1800s, when the government granted railroads the rights of way on public land.

The government gave millions of acres to settlers and homesteaders but preserved railroad pathways through the formerly public land. In the Wyoming case, the government claimed it retained ownership of a railroad bed that went on to become a recreational trail once the railroad disappeared.

Chief Justice John Roberts said the government was wrong to keep claiming ownership rights. Justice Sonia Sotomayor, in a dissenting opinion, said the decision "undermines the legality of thousands of miles of former rights of way that the public now enjoys as means of transportation and recreation."

The popular 150-mile Great Allegheny Passage that runs from Pittsburgh to Cumberland, Md., should not be affected by the ruling, said Linda McKenna Boxx. She is a board member with the Allegheny Trail Alliance, which supports the passage.

"We own most of the property. We own it like you own your house," Boxx said.

Organizers said the Ohio River Trail should have no changes, though supporters of several other regional trails could not be reached on Monday.

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